

**JAMI DICK, an individual dba JBD CONSTRUCTION, et al v.
LISA SAHLMAN, an individual**

24CV47140

**DEFENDANT U.S. BANK, N.A.'S MOTION FOR INTERPLEADER AND
REQUEST FOR ATTORNEY'S FEES**

This action arises out of a construction project dispute between Jami Dick dba JBD Construction and Rod Scott ("Plaintiffs"), on the one hand, and Lisa Sahlman and Milton Brown ("Defendants"). Defendant U.S. Bank National Association ("U.S. Bank") is the lender of the construction funds used to finance the construction project at issue in the lawsuit. U.S. Bank is a nominal defendant as there are no claims being made against it in the lawsuit.

Now before the Court is a Motion for Interpleader brought by U.S. Bank seeking a Court order to interplead the Funds, discharge U.S. Bank from any liability with respect to the Funds, dismiss U.S. Bank from this action, and award \$1,000 in attorney's fees.

Defendant's motion fails to comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3 3 7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the

court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language In the notice may be a basis for the Court to deny the motion.

Additionally, the motion is not supported by an affidavit or declaration as required in Code Civil Procedure section 386.5(b).)

Accordingly, the motion is **DENIED**, Without prejudice to refile an appropriate motion.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required.